

CHAPTER 59

Slaughter of Animals (Amendment) Act, 1954

ARRANGEMENT OF SECTIONS

Section

1. Licensing of premises for slaughter of animals.
2. Regulations for securing humane conditions in slaughterhouses, etc.
3. Licensing of slaughtermen.
4. Extension of s. 1 of Slaughter of Animals Act, 1933.
5. Penalties for certain offences.
6. Powers of entry.
7. Regulations.
8. Expenses.
9. Interpretation and construction.
10. Application to London and Metropolitan Cattle Market.
11. Consequential amendments and repeals.
12. Short title, citation, extent and commencement.

SCHEDULES:

First Schedule—Particular matters to be dealt with by regulations under s. 2 relating to horses.

Second Schedule—Amendments and repeals.

Part I—Minor and consequential amendments.

Part II—Enactments repealed.

An Act to implement certain recommendations of the Committee of Inquiry into the Slaughter of Horses, and otherwise to amend the enactments relating to the slaughter of animals. [30th July, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Licensing of premises for slaughter of animals.

1.—(1) In relation to the use of any premises for or in connection with the slaughter of horses, a licence granted after the commencement of this Act under section fifty-seven of the Food and Drugs Act, 1938 (which provides for the licensing of slaughterhouses and knackers' yards), shall be of no effect unless the licence expressly authorises the use of the premises for that purpose.

(2) Where any premises used or to be used for the confinement of animals awaiting slaughter in a slaughterhouse or knacker's yard are situated outside the curtilage of the premises used or to be used for the slaughter, separate licences may be granted under the said section fifty-seven authorising the use of those premises for those purposes respectively.

(3) A licence under the said section fifty-seven shall not be granted in respect of any premises unless the local authority are satisfied that the requirements of any regulations in force under this Act with respect to the construction, lay-out and equipment of premises are complied with or will be complied with before the date on which the licence or renewed licence comes into force in respect of those premises; but nothing in this subsection shall be taken as affecting—

(a) so much of the said section fifty-seven as confers a right of appeal on a person aggrieved by the refusal of a local authority to grant a licence under that section; or

(b) paragraph 2 of the First Schedule to the Slaughterhouses Act, 1954 (under which a slaughterhouse licence is, in the case of certain classes of premises, to be granted as of right subject to the application for the licence being made before the first day of January, nineteen hundred and fifty-five).

(4) In the application of this section to Scotland—

(a) in subsections (1) and (2), for any reference to a licence granted under section fifty-seven of the Food and Drugs Act, 1938, in so far as that section relates to the licensing of slaughterhouses, there shall be substituted a reference to a registration under section nine of the Slaughterhouses Act, 1954 (which provides for registration in respect of slaughterhouses), and in so far as the said section fifty-seven relates to the licensing of knackers' yards there shall be substituted a reference to a licence under section thirty-three of the Public Health (Scotland) Act, 1897 (which provides for the licensing of knackers' yards);

(b) in subsection (3), for any reference to section fifty-seven of the said Act of 1938 there shall be substituted a reference to section thirty-three of the Public Health (Scotland) Act, 1897; and

(c) where a local authority refuse to grant a registration in respect of premises under section nine of the Slaughterhouses Act, 1954, expressly authorising the use of the premises in question for or in connection with the slaughter of horses, any such refusal shall, for the purposes of subsection (8) of section ten of the said Act (which allows to a person aggrieved by a decision of a local authority under that section an appeal to the Secretary of State) be treated as a refusal of registration under the said section.

Regulations
for securing
humane
conditions in
slaughter-
houses, etc.

2.—(1) The Minister may make such regulations as appear to him to be expedient for securing humane conditions and practices in connection with the slaughter of animals at slaughterhouses and knackers' yards; and such regulations may in particular—

- (a) prescribe requirements as to the construction, lay-out and equipment of premises used as slaughterhouses or knackers' yards;
- (b) prescribe conditions to be observed in connection with the confinement and treatment of animals while awaiting slaughter in such premises, and in connection with the slaughter of animals therein.

(2) Regulations made under this section may make different provision in relation to different kinds of animals and in relation to premises used for different purposes in connection with the slaughter of animals and may—

- (a) so far as they are made for the purposes mentioned in paragraph (a) of the last foregoing subsection, be made to apply subject to exceptions or modifications in relation to premises constructed or adapted for use before the date on which the regulations come into force;
- (b) in any case be made without applying, or applying subject to exceptions or modifications, in relation to slaughterhouses forming part of an imported animals wharf or approved landing place for the purposes of the Diseases of Animals Act, 1950, or applying (with or without exceptions or modifications) only in relation to any such slaughterhouse of that description as may be specified in the regulations.

(3) Regulations made under this section may make provision corresponding (with or without modifications) with any of the provisions in force immediately before the commencement of this Act under subsection (1) of section five of the Protection of Animals Act, 1911, section four of the Slaughter of Animals Act, 1933, and section one of the Slaughter of Animals (Amendment) Act, 1951; and, without prejudice to the foregoing provision, regulations so made in relation to horses shall in particular make provision with respect to the matters specified in the First Schedule to this Act.

(4) Regulations made under this section may prescribe penalties for offences against the regulations, not exceeding those specified in section five of this Act, and may impose on the occupiers of premises to which the regulations apply responsibility for compliance with any of the provisions of the regulations.

(5) In the application of this section to Scotland, for the reference to the Minister there shall be substituted a reference to the Secretary of State; and for the reference to subsection (1) of section five of the Protection of Animals Act, 1911, there shall be substituted a reference to subsection (2) of section five of the Protection of Animals (Scotland) Act, 1912.

(6) The enactments mentioned in subsection (3) and subsection (5) of this section shall cease to have effect.

3.—(1) Subject to the provisions of this section, any licence granted after the commencement of this Act under section three of the Slaughter of Animals Act, 1933 (which provides for the licensing of slaughtermen by local authorities), shall specify—

(a) the kinds of animals which may be slaughtered or stunned by the holder of the licence; and

(b) the types of instrument which may be used by him for slaughtering or stunning any such animals;

and may, in such cases as may be prescribed by regulations under this section, be granted subject to a condition prohibiting the slaughter of any animal in pursuance of the licence except under the supervision of a person being the holder of a licence in force under the said section three which is not subject to a like condition.

(2) In relation to the slaughter of animals by the Jewish method for the food of Jews or by the Mohammedan method for the food of Mohammedans, so much of the last foregoing subsection as requires a licence under the said section three to specify the matters referred to in paragraph (a) and paragraph (b) of that subsection shall not apply.

(3) The period for which a licence may from time to time be granted after the commencement of this Act under the said section three shall not exceed one year, and any licence so granted and authorising the holder to slaughter or stun horses (whether or not it also authorises him to slaughter or stun other animals) shall, notwithstanding anything in subsection (4) of that section, be in force only within the district of the local authority by whom it is granted.

(4) The Minister may make regulations for prescribing qualifications for holding licences, or licences of any class, under the said section three, and for prohibiting the grant of such licences to persons not having the prescribed qualifications.

(5) Without prejudice to the provisions of the said section three, a local authority may refuse an application for the grant of a licence under that section, or revoke or suspend the operation of such a licence, if the applicant or holder has failed to comply

with any condition of his licence granted by that or any other local authority under the said section three, or has been convicted of an offence under—

- (a) the Slaughter of Animals Acts, 1933 to 1954, or the Slaughter of Animals (Scotland) Acts, 1928 to 1954;
- (b) the Protection of Animals Act, 1911, or the Protection of Animals (Scotland) Act, 1912; or
- (c) any regulations made under this Act, or any order made under section twenty of the Diseases of Animals Act, 1950, regulating the transport of animals.

(6) In the application of this section to Scotland, subsection (3) shall be omitted; for references to section three of the Slaughter of Animals Act, 1933, there shall be substituted references to section two of the Slaughter of Animals (Scotland) Act, 1928; and for the reference to the Minister there shall be substituted a reference to the Secretary of State.

Extension of
s. 1 of
Slaughter
of Animals
Act, 1933.

4.—(1) Subsection (1) of section one of the Slaughter of Animals Act, 1933 (which provides that animals to which that section applies, when slaughtered in slaughterhouses and knackers' yards, shall be instantaneously slaughtered or instantaneously stunned and rendered insensible until death supervenes), shall apply throughout England and Wales to all kinds of animals.

(2) Paragraph (a) of the proviso to the said subsection (1) (which modifies that subsection in its application to the slaughter of pigs in premises where electrical energy is not available) shall cease to have effect.

Penalties for
certain
offences.

5.—(1) Subject to the provisions of this section, any person who slaughters or stuns, or attempts to slaughter or stun, any animal in contravention of section one or section three of the Slaughter of Animals Act, 1933, or section one of the Slaughter of Animals (Pigs) Act, 1953, or knowingly makes any false statement for the purpose of obtaining a licence under the said section three, shall be guilty of an offence and liable on summary conviction to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding three months, or to both.

(2) A person shall not be guilty of an offence in respect of any such contravention as aforesaid if he proves that by reason of an accident or other emergency the contravention was necessary for preventing physical injury or suffering to any person or animal.

(3) Where a person convicted of an offence in respect of any such contravention as aforesaid or of an offence against regulations made under section two of this Act (including a person so convicted by virtue of section thirty-five of the Magistrates' Courts Act, 1952) is the holder of a licence granted under section

fifty-seven of the Food and Drugs Act, 1938, in respect of the premises where the offence was committed, the court may, in addition to any other penalty, cancel the licence.

(4) In the application of this section to Scotland—

(a) for the references to section one and section three of the Slaughter of Animals Act, 1933, there shall be substituted respectively references to section one and section two of the Slaughter of Animals (Scotland) Act, 1928; for the words from “a fine” to the end of subsection (1) there shall be substituted the words “a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding six months, or to both”; and

(b) for subsection (3) there shall be substituted the following subsection—

“(3) Where a person convicted of an offence in respect of any such contravention as aforesaid or of an offence against regulations made under section two of this Act is registered in respect of premises under section nine of the Slaughterhouses Act, 1954, or is the holder of a licence granted under section thirty-three of the Public Health (Scotland) Act, 1897, the court may, where such registration or licence relates to premises where the offence was committed, in addition to any other penalty, cancel the registration or the licence, as the case may be”.

(5) Section five of the Slaughter of Animals Act, 1933, section two of the Slaughter of Animals (Pigs) Act, 1953, and subsection (3) of section one of the Slaughter of Animals (Scotland) Act, 1928 (which prescribe penalties for offences under those Acts respectively), shall cease to have effect.

6.—(1) Section seven of the Slaughter of Animals Act, 1933 ^{Powers of} (which enables medical officers of health and sanitary inspectors ^{entry.} to enter slaughterhouses and knackers' yards in order to ascertain whether there is any contravention of the provisions of that Act), shall have effect as if the reference therein to the provisions of that Act included a reference to the provisions of any regulations made under section two of this Act.

(2) The powers of medical officers of health and sanitary inspectors under the said section seven may be exercised also by officers of the Minister and by veterinary surgeons appointed by local authorities, and any reference in that section to a medical officer of health or sanitary inspector shall be construed accordingly.

(3) In the application of this section to Scotland, for references to the Slaughter of Animals Act, 1933, to section seven of that Act, and to medical officers of health and sanitary inspectors there shall

be substituted respectively references to the Slaughter of Animals (Scotland) Act, 1928, to section four of that Act, and to constables and persons authorised by local authorities; and for the reference to the Minister there shall be substituted a reference to the Secretary of State.

Regulations.

7.—(1) Any power to make regulations under this Act shall be exercisable by statutory instrument.

(2) Any statutory instrument containing regulations made under this Act shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Expenses.

8. There shall be defrayed out of moneys provided by Parliament any increase attributable to the provisions of this Act in the administrative expenses of the Minister or the Secretary of State, or in the sums payable out of moneys so provided under Part I of the Local Government Act, 1948, or the Local Government (Financial Provisions) (Scotland) Act, 1954.

Interpretation and construction.

9.—(1) In this Act the following expressions have the meanings hereby assigned to them respectively, that is to say:—

“grant”, in relation to a licence, includes renew or renewal, as the context requires;

“horse” includes ass and mule;

“the Minister” means the Minister of Food.

(2) This Act, except as it applies to Scotland, and except so far as it amends the Food and Drugs Act, 1938, shall be construed as one with the Slaughter of Animals Act, 1933.

(3) This Act, as it applies to Scotland and except so far as it amends the Public Health (Scotland) Act, 1897, and the Slaughterhouses Act, 1954, shall be construed as one with the Slaughter of Animals (Scotland) Acts, 1928 to 1953.

Application to London and Metropolitan Cattle Market.

10.—(1) In relation to the administrative county of London the foregoing provisions of this Act shall have effect as if for references to the Food and Drugs Act, 1938, and to section fifty-seven of that Act there were substituted references to the Public Health (London) Act, 1936, and to sections one hundred and forty-four and one hundred and forty-five of that Act.

(2) It is hereby declared that subsection (1) of section eight of the Slaughter of Animals Act, 1933 (which relates to the authorities responsible for enforcing that Act), enacts not only that the common council of the city of London is the local authority for the purpose of enforcing the provisions of that Act in relation to the Metropolitan Cattle Market, but also that for the purposes of section three of that Act that Market is to be taken as being within the area of the said common council and

not within that of the Metropolitan Borough of Islington; and so much of this Act as amends the said section three shall be construed accordingly.

11.—(1) Subject to the provisions of this section, the enactments described in Part I of the Second Schedule to this Act shall have effect subject to the amendments set out in the second column of that Part (being minor amendments and amendments consequential on the foregoing provisions of this Act), and the enactments described in Part II of that Schedule are hereby repealed to the extent specified in the third column of that Part.

Consequential
amendments
and repeals.

(2) So much of the foregoing subsection as amends section three of the Slaughter of Animals Act, 1933, shall not apply in relation to a licence in force under that section at the commencement of this Act unless and until the licence is renewed under that section:

Provided that every such licence shall, if still in force at the expiration of the period of one year beginning with the commencement of this Act, cease to have effect at the expiration of that period.

12.—(1) This Act may be cited as the Slaughter of Animals (Amendment) Act, 1954.

Short title,
citation,
extent and
commence-
ment.

(2) This Act, except as it applies to Scotland, and the Slaughter of Animals Act, 1933, and the Slaughter of Animals (Pigs) Act, 1953, may be cited together, and are referred to in this Act, as the Slaughter of Animals Acts, 1933 to 1954.

(3) This Act, as it applies to Scotland, and the Slaughter of Animals (Scotland) Acts, 1928 to 1953, may be cited together, and are referred to in this Act, as the Slaughter of Animals (Scotland) Acts, 1928 to 1954.

(4) This Act shall not extend to Northern Ireland.

(5) This Act shall come into operation on the first day of October, nineteen hundred and fifty-four.

SCHEDULES**Section 2.****FIRST SCHEDULE****PARTICULAR MATTERS TO BE DEALT WITH BY REGULATIONS UNDER S. 2
RELATING TO HORSES**

1. Construction, equipment and lay-out of lairages, including provision of racks for fodder and supply of water.
2. Feeding and watering of horses pending slaughter.
3. Construction, equipment and lay-out of premises, rooms or compartments in which slaughter takes place, and conditions to be observed therein at the time of slaughter.
4. Disposal of blood, offal and refuse.
5. Notices to be given and returns to be made to local authorities by persons carrying on business as slaughterers of horses, and records to be kept by such persons.

Section 11.**SECOND SCHEDULE****AMENDMENTS AND REPEALS****PART I****MINOR AND CONSEQUENTIAL AMENDMENTS**

- | | |
|--|---|
| <p>The Public Health (Scotland) Act, 1897,
60 & 61 Vict. c. 38.</p> | <p>In section three, in the definitions of "knacker" and "slaughterer of cattle or horses", for the words "as butcher's meat", in both places where those words occur, there shall be substituted the words "for sale for human consumption".</p> |
| <p>The Food and Drugs Act, 1938, 1 & 2 Geo. 6. c. 56.</p> | <p>In section fifty-seven—</p> <ol style="list-style-type: none"> (a) in subsection (4) for the words "as to any similar licence" there shall be substituted the words "as to any licence in respect of a slaughter-house or knacker's yard"; (b) in subsection (5) after the words "grant or renew a licence under this section" there shall be inserted the words "or to grant a licence expressly authorising the use of the premises in question for or in connection with the slaughter of horses, or to renew a licence with such an authorisation as aforesaid"; |

**The Food and Drugs
Act, 1938—*cont.***

(c) in subsection (6) for the words from “A person aggrieved” to “under this section” there shall be substituted the words “A person aggrieved by any such refusal of a local authority as is mentioned in the last foregoing subsection”.

**2ND SCH.
—*cont.***

In section ninety the following words shall be added at the end of subsection (1):—

“The reference in this subsection to refusing a licence includes, in the case of a licence under section fifty-seven of this Act, a reference to refusing to grant or renew a licence with such an authorisation as is mentioned in subsection (5) of that section.”

**The Slaughter of
Animals Act, 1933,
23 & 24 Geo. 5.
c. 39.**

In section three, in subsection (1), for the words “who is not the holder of a licence granted by a local authority” there shall be substituted the words “except in accordance with a licence granted by the local authority”;

In subsection (3) of that section, for the words “three years” there shall be substituted the words “one year”;

At the end of subsection (4) of that section, there shall be added the following proviso:

“Provided that a licence authorising the holder to slaughter or stun horses (whether or not it also authorises him to slaughter or stun other animals) shall be in force only within the district of the local authority granting the licence”;

In subsection (5) of that section, after the words “operation of a licence” there shall be inserted the words “in force”;

In section nine—

(a) in the definition of “knacker’s yard” for the words “not killed for butcher’s meat” there shall be substituted the words “the flesh of which is not intended for sale for human consumption”, and

(b) in the definition of “slaughter-house” for the words “for butcher’s meat” there shall be substituted the words “the flesh of which is intended for sale for human consumption”.

2ND SCH.
—cont.

**The Slaughter of
Animals (Scotland)**
Act, 1928, 18 & 19
Geo. 5. c. 29.

In section one, in subsection (2), for the words from “by a person” to the end of the subsection there shall be substituted the words “by means of a mechanically operated instrument in proper repair and by a person authorised in that behalf by a licence issued by the local authority under section two of this Act”;

At the end of section two there shall be added the following subsection:—

“(7) In any application for a licence under this section the person making the application shall state—

- (a) whether he holds a licence granted under this Act in any area or areas other than that to which his application relates and the names of any such areas,
- (b) whether he has been refused a licence or has had a licence suspended or revoked in any other area and, if so, the name of that area, and
- (c) whether he has any similar application pending in any other area and, if so, the name of that area.”

**The Public Health
(London) Act, 1936,**
26 Geo. 5. and 1
Edw. 8. c. 50.

In section three hundred and four, in subsection (1), in the definitions of “knacker” and “slaughterer”, for the words “as butchers meat”, in both places where those words occur, there shall be substituted the words “for sale for human consumption”.

PART II
ENACTMENTS REPEALED2ND SCH.
—cont.

Session and Chapter	Short Title	Extent of Repeal
1 & 2 Geo. 5. c. 27.	The Protection of Animals Act, 1911.	In section five, subsection (1). Section six. The First Schedule.
2 & 3 Geo. 5. c. 14.	The Protection of Animals (Scotland) Act, 1912.	In section five, subsections (1) and (2). Section six. The First Schedule.
18 & 19 Geo. 5. c. 29.	The Slaughter of Animals (Scotland) Act, 1928.	In section five, subsections (1) and (2); in subsection (3) the words "Save as provided in the foregoing subsections". Subsection (3) of section one.
23 & 24 Geo. 5. c. 39.	The Slaughter of Animals Act, 1933.	In section one, paragraph (a) of the proviso to subsection (1), and subsection (2). Sections two, four and five. The Second Schedule.
1 & 2 Geo. 6. c. 56.	The Food and Drugs Act, 1938.	In section fifty-eight, in subsection (1) the words "and for preventing cruelty therein". In section sixty, in paragraph (a) of subsection (2), the words "and for preventing cruelty therein".
14 & 15 Geo. 6. c. 49.	The Slaughter of Animals (Amendment) Act, 1951.	The whole Act.
1 & 2 Eliz. 2. c. 27.	The Slaughter of Animals (Pigs) Act, 1953.	Section two.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Public Health (Scotland) Act, 1897 ...	60 & 61 Vict. c. 38.
Protection of Animals Act, 1911 ...	1 & 2 Geo. 5. c. 27.
Protection of Animals (Scotland) Act, 1912...	2 & 3 Geo. 5. c. 14.
Slaughter of Animals (Scotland) Act, 1928 ...	18 & 19 Geo. 5. c. 29.
Slaughter of Animals Act, 1933 ...	23 & 24 Geo. 5. c. 39.
Public Health (London) Act, 1936 ...	26 Geo. 5. & 1 Edw. 8. c. 50.
Food and Drugs Act, 1938 ...	1 & 2 Geo. 6. c. 56.
Local Government Act, 1948 ...	11 & 12 Geo. 6. c. 26.
Criminal Justice (Scotland) Act, 1949 ...	12, 13 & 14 Geo. 6. c. 94.
Diseases of Animals Act, 1950 ...	14 Geo. 6. c. 36.
Slaughter of Animals (Amendment) Act, 1951	14 & 15 Geo. 6. c. 49.
Magistrates' Courts Act, 1952 ...	15 & 16 Geo. 6. & 1 Eliz. 2. c. 55.
Slaughter of Animals (Pigs) Act, 1953 ...	1 & 2 Eliz. 2. c. 27.
Local Government (Financial Provisions) (Scotland) Act, 1954 ...	2 & 3 Eliz. 2. c. 13.
Slaughterhouses Act, 1954 ...	2 & 3 Eliz. 2. c. 42.

CHAPTER 60

Electricity Reorganisation (Scotland) Act, 1954

ARRANGEMENT OF SECTIONS

PART I

REORGANISATION

Section

1. Transfer of the functions of the Minister of Fuel and Power to the Secretary of State.
2. Establishment and functions of the South of Scotland Electricity Board.
3. Termination of the functions of the Central Authority in the North of Scotland District and dissolution of the Scottish Area Boards.

PART II

TRANSFERS OF UNDERTAKINGS

4. Transfers of assets and liabilities of Scottish Area Boards.
5. Transfer of Central Authority's undertaking in Scotland.
6. Further provisions as to transfers.
7. Financial adjustment between the South of Scotland Board and the Central Authority.
8. Supplementary provisions.